

the lord having made the usual proclamation, and the heir having tendered himself for admission, and the lord having refused to admit him on the ground that the estate was in the devisees, who refused to come in, it was ruled that, as the devisees had no title until admittance and the estate descended * to the heir, the lord was not justified in seizing for want of a tenant (*a*).

29. **Reimbursement.** — Though the manorial burdens in respect of copyholds fall upon the trustee personally at law, he is of course entitled in equity to reimburse himself the expenditure out of the trust estate (*b*).

30. **Trustee of leaseholds.** — The trustee of a *leasehold* estate is liable upon the covenants of the lease just as if he were the real owner (*c*).¹ But the trust estate must indemnify him in equity. [It is the duty of a trustee of leasehold property to keep it free from the risk of forfeiture; and for that purpose he is entitled to have the covenants in the lease performed out of the rents of the property, and is not bound to be satisfied with an indemnity against the consequences of a breach of the covenants. And where a tenant for life of leasehold houses had been allowed by the trustees to receive the rents and profits, and the houses had not been kept in a proper state of repair, the Court, at the instance of one of the trustees, appointed a receiver (*d*).]

31. **If trustee trade in that character, he is amenable to the bankrupt laws.** — If a trustee carry on a *trade* in the due execution of his trust, he makes himself amenable to the operation of the bankrupt law in the same manner as if he had traded on his own account (*e*), and the debts contracted by him in such trade are not debts of the testator, but his own

Q. B. 269; [and see now 44 & 45 Vict. c. 41, s. 30.]

(*a*) *Garland v. Mead*, 6 L. R. Q. B. 441.

(*b*) *Rivet's case*, Moore, 800.

(*c*) *White v. Hunt*, 6 L. R. Ex. 32.

[(*d*) *Re Fowler*, 16 Ch. D. 723.]

(*e*) *Wightman v. Townroe*, 1 M. & S. 412; *Ex parte Garland*, 10 Ves.

119, *per Lord Eldon*; *Hankey v. Hammond*, cited in marginal note to 1 Cooke's Bank. Law, 84, 3d ed.; and see *Re Phoenix Life Insurance Company*, 2 J. & H. 229; *Lucas v. Williams*, No. 1, 4 De G. F. & J. 436; *Farhall v. Farhall*, 7 L. R. Ch. App. 123.

¹ *Greason v. Keteltas*, 17 N. Y. 491.